

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4320

By: Kendrix

AS INTRODUCED

An Act relating to the Administrative Procedures Act; requiring agencies to review all existing permanent rules; requiring agencies to repeal and consolidate a certain percentage of rules within two years; providing exception; requiring agencies to submit an annual compliance report; mandating certain report contents; establishing consequences for violations; clarifying exception, agency authority, and legislative authority; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 308.4 of Title 75, unless there is created a duplication in numbering, reads as follows:

A. Each agency, as defined in Section 250.3 of this title, shall conduct a comprehensive review of all existing permanent rules. Such review shall:

1. Include a total count of all existing, codified, permanent rules in place as of the effective date of this act;

1 2. Include a baseline count of rules which shall be determined
2 by calculating seventy-five percent (75%) of the total count
3 identified in paragraph 1 of this subsection; and

4 3. Shall identify all rules that are obsolete, duplicative,
5 ineffective, unnecessary, or unduly burdensome.

6 B. Each agency shall revoke, consolidate, or amend at minimum
7 twenty-five percent (25%) of the agency's total existing permanent
8 rules within two (2) years of the effective date of this act to
9 reach the baseline rule count described in paragraph 2 of subsection
10 A of this section.

11 C. Notwithstanding the requirements of this section, permanent
12 rules that were promulgated by the agency in accordance with
13 express, specific authority from statute may be excluded from the
14 total rule count described in paragraph 1 of subsection A of this
15 section.

16 D. Each agency shall submit an annual written compliance report
17 and certification to the Governor, the Speaker of the House, the
18 President Pro Tempore of the Senate, and the Legislative
19 Administrative Rules Committees. The written compliance report
20 shall include:

21 1. The agency's total rule count as defined in subsection A of
22 this section;

23 2. The agency's baseline rule count as defined in subsection A
24 of this section;

1 3. A list of rules that were recommended for repeal or
2 consolidation;

3 4. A list of rules excluded from the total rule count on the
4 basis that they were promulgated with express, specific statutory
5 authority, including citations to such authority;

6 5. A justification for retaining each major rule as defined by
7 Paragraph 11 of Section 250.3 of this title; and

8 6. The percentage of rules actually repealed and consolidated
9 from the total rule count.

10 E. If the Legislature finds that an agency has not complied
11 with the requirements of this section, such agency shall be
12 prohibited from promulgating any permanent rules until further
13 notice from the Legislature.

14 F. Nothing in this section shall be interpreted to:

15 1. Require the repeal of permanent rules that were promulgated
16 in accordance with express, specific authority from statute;

17 2. Expand agency authority; or

18 3. Limit legislative authority.

19 SECTION 2. This act shall become effective November 1, 2026.
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